

Vipul Kant Upadhyay vs Standard Chartered Bank on 13 October, 2022

Author: Jasmeet Singh

Bench: Jasmeet Singh

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IN THE HIGH COURT OF DELHI AT NEW DELHI

CRL.M.C. 5223/2022

VIPUL KANT UPADHYAY

Through:

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Mr Gaurav Chaudhary and
Madan, Advs.

versus

STANDARD CHARTERED BANK

Through:

CORAM:

HON'BLE MR. JUSTICE JASMEET SINGH

ORDER

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13.10.2022

CRL.M.A. 20829/2022

Exemption allowed, subject to all just exceptions. The application stands disposed of.

This is a petition seeking quashing of complaint case being Ct. No. 1504/2018 titled „Standard Chartered Bank v. M/s. IAP Company Pvt. Ltd. pending in the Court of learned Senior Civil Judge, Patiala House Court qua the petitioner.

It is stated by Mr Chaudhary, learned counsel appearing for the petitioner that the complaint under Section 25 of the Payment & Settlement Systems Act, 2007 is misconceived as in the present case, the ECS bounced on 01.12.2017 whereas the petitioner has ceased to be a Director of M/s. IAP. Company Pvt. Ltd. i.e. accused No. 1 on 18.10.2017. Hence, he cannot be a party to the criminal complaint under Section 25 of Payment & Settlement Systems Act, 2007.

Issue notice to the respondent by all modes including electronic on the petitioner taking requisite steps within one week from today, returnable on 07.02.2023.

This is an application seeking stay of further proceedings in case being Ct. No. 1504/2018 titled „Standard Chartered Bank v. M/s. IAP Company Pvt. Ltd. pending in the Court of learned Senior Civil Judge, Patiala House Court qua the petitioner.

I am of the view that as per DIR-12, the petitioner ceased to be a Director of M/s. IAP. Company Pvt. Ltd. on 18.10.2017 whereas the ECS in the present case has bounced 01.12.2017 when the petitioner was not a Director.

For the aforesaid reasons, proceedings in case being Ct. No. 1504/2018 titled „Standard Chartered Bank v. M/s. IAP Company Pvt. Ltd. pending in the Court of learned Senior Civil Judge, Patiala House Court qua the petitioner shall remain stayed till the next of hearing.

List on 07.02.2023.

JASMEET SINGH, J OCTOBER 13, 2022 sr [Click here to check corrigendum](#), if any